

Reflections on Mediation: Insights from a Legal Professional, an NAFCM Webinar, and the Classroom

The integration of knowledge gained through three learning experiences: an interview with a practicing law professional, a webinar from the National Association for Community Mediation (NAFCM) and learning of the basic concepts introduced in this course. From their respective angles, each is a mediator with a unique approach but all share one shared fact: good conflict resolution is a human process that relies on communication, empathy and respect.

Part I: Interview with Vincent Gorski and the NAFCM Webinar by Michael Fraidenburg

I interviewed Vincent Gorski, family law attorney and Principal of The Gorski Firm, APC, of Bakersfield, California, in the area of divorce, custody, spousal support and property division. The one provocation he raised was the self-determination principle that we learned in class, and how important it is to the process of mediation, in his experience, to have control and the ability to be cost efficient in the process of mediation as opposed to trial, where the outcome is determined by a judge who has known the parties for only a few hours.

He also stressed the importance of preparation as the basis for the success of the development which includes informing clients of what they can expect and not to anticipate in any session so that expectations are realistic and demands are legally defensible. His use of emotions as data or as indicators of what a client truly cares about was perhaps the most thought-provoking thing and he became more of an emotional coach than a mere legal advisor. He also emphasized again the importance of confidentiality as a necessary ingredient for the possibility of honest dialogue, which without it, would never be frank enough to allow for a real resolution. These insights collectively highlighted the fact that practice of mediation requires emotional intelligence as much as legal skills.

The NAFCM webinar I chose was The Art of Mediation by Michael Fraidenburg which discussed community mediation from a broader, more philosophical standpoint than Gorski. His main thesis is that mediators have long been measuring the wrong things, equating success (agreements reached and cases closed) with significance (moments of actual human relationship and restored capacity for relationship). He added that those who he calls “dominators” (people who have a “win at all costs” attitude toward conflict) never end up at mediation tables as they haven’t bought into the premise of the process, which is cooperation, and that this empty chair is the biggest warning sign in the field.

He additionally raised questions about the reactive roles of the dispute resolution centres, as they respond to the needs of the people and add services based on needs rather than working on the upstream issues that cause disputes to arise, and urged a proactive effort of peacebuilding, building communities that can work together before a crisis arises. To show what significance looks like in practice, he explained how he facilitated a conversation between people who were on opposite sides of the Israel-Palestine conflict with the aim of not making it a negotiation for agreement, but rather a conversation to re-establish a capacity for being in conversation. One of the most important ideas I learned in this course is that significance is one thing, having a conversation for agreement is another and opening up the possibility of being in conversation is yet another.

Part II: Comparing and Contrasting with Classroom Concepts

Both Gorski and Fraidenburg's views enhance and complicate the core concepts presented in this course. There is much commonality within the three sources at the core principles level (neutrality, confidentiality, voluntary participation and self-determination) although sometimes less obvious than that presumed by the classroom framework. The most obvious convergence was on confidentiality which was discussed in class but both practitioners illustrated how it is more than a principle. It is the basis of trust, without which no real dialogue can take place.

The same goes for the concept of self-determination, which was also mentioned in both sources, but with some caveats. Gorski's focus on the client's control of results, self-determination in its purest form, is just the beginning and Fraidenburg extended the idea of self-determination to the question: "What if a person has no cultural or relational prerequisites to exercise self-determination at all?" His discomfort with the assumptions of co-operation makes self-determination something which must be developed rather than taken for granted, for not all dominators are willing to make such assumptions. Both sources complicated the notion of voluntary participation in some different ways. Gorski pointed out that the general trend of California courts is to promote or mandate mediation in family law cases, but Fraidenburg raised a more basic issue, the individuals who are most willing to engage in cooperative resolution processes are the ones who are least likely to participate. Class introduced the concept of voluntary participation as a key principle to enable learners to participate and both practitioners showed how this was equally a strength and a structural constraint.

Gorski reiterated the classroom model, pointing out that “neutrality is required in any successful mediation, in that sense it will help the parties to test reality and reality check each other without leading them towards a foregone conclusion” and Fraidenburg said that “Neutrality is being made difficult in a polarized cultural setting where cooperation is weakness.” All three sources of wisdom are directed mainly towards communication and empathy. The concept developed by Kenneth Cloke in his research that mediation is a way of making adversaries human to each other, “significance over success” is the most general of the ideas I’ve heard. The ultimate purpose of mediation is to restore the human capacity to connect, not an agreement.

Another difference that should be noted is the breadth of the classroom framework vs the vision of Fraidenburg. Mediation was woven into the fabric of the class, but only in the context of specific conflicts, and Fraidenburg encouraged practitioners to look beyond resolution of any one conflict to the cultural and communal contexts in which mediation is either feasible or impossible. This larger vision isn’t necessarily at odds with the lesson from class; it’s more that the same principles of mediation need to spill out of the session room into the communities from which they come.

Conclusion

This was a task that allowed classroom ideas to be applied to professional practice and thinking about moving beyond the classroom. Vincent Gorski brought abstract concepts to the test of family law practice where legal strategy and emotional intelligence must go hand in hand. In this challenge, Michael Fraidenburg asked the field and the students in the field to consider going beyond simply resolving cases to the cultural context of those cases that makes mediation effective. Together with the core concepts covered in this course, they have led to a more rounded and authentic view of mediation, of what it can achieve and of what it strives for and would continue to strive for. I have learned that conflict isn’t just a problem to be solved. It can be an opportunity for growth, understanding and restoration of human relationship if handled skilfully, with integrity and with genuine care.